Agenda Summary Min

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Approved at

MINUTES OF A CITY COUNCIL MEETING

May 27, 2025

12:00 PM

Mayor Keeley opened the City Council Closed Session at 12:02 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Attorney C. Bronson, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification - None.

Public Comment

Mayor Keeley opened the public comment period at 12:03 p.m. There were no speakers. Mayor Keeley closed the public comment period at 12:03 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Real Property Negotiations (Government Code §54956.8)

   Property: 1070 River Street
   APN: 008-661-18
   Owner: City of Santa Cruz
   City Negotiator: Bonnie Lipscomb
   Negotiating Parties: City of Santa Cruz and Arts Council Santa Cruz County
   Under Negotiation: Price, terms of payment, or both

Council received a status report from the City Negotiator, and no reportable action was taken.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
May 27, 2025

12:45 PM

Call to Order – Mayor Keeley called the meeting to order at 12:45 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, Assistant City Attorney C. Bronson, Director of Public Works N. Nguyen, Director of Finance E. Cabell, Deputy City Manager/Director of Economic Development B. Lipscomb, Director of Water H. Luckenbach, Director of Information Technology K. Morgan, Director of Planning and Community Development L. Butler, Chief People Officer S. De Leon, Director of Parks and Recreation T. Elliot, Chief of Fire R. Oatey, Principal Management Analyst E. Nguyen, Principal Planner M. VanHua, Senior Planner S. Neuse, Transportation Planner C. Gallogly, Planning Technician B. Williamson, Finance Manager E. Burton, Principal Management Analyst V. Pearson, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 12:46 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Unidentified person spoke regarding free speech and stated that hate speech does not exist.

Trey spoke regarding downtown Santa Cruz and asked Council to consider pedestrian street on Cooper Street.

Oral Communications (continued)

James Ewing-Whitman spoke regarding a presentation he saw about transgender regret, and a previous Council decision to permit fluoride being added to water.

At 12:52 p.m. Mayor Keeley closed Oral Communications.

Presentations

2. Mayoral Proclamation Declaring May 27—June 1, 2025 as Santa Cruz Pride Week

   Councilmember Brunner read from and presented a proclamation declaring May 27—June 1, 2025 as Santa Cruz Pride Week.

3. Mayoral Proclamation Declaring May, 2025, as Older Americans Month

   Councilmember Trigueiro read from and presented a proclamation declaring May 2025 as Older Americans Month.

Presiding Officer's Announcements – Mayor Keeley announced item 28 has been continued to the June 24th meeting and will not be discussed, and item 16 from the Consent Agenda would be heard under General Business.

Statements of Disqualification – Councilmember Brunner announced she will be recusing herself from items 9, 10, 21, 23, 24, and 25 as they relate to her employer.

Additions and Deletions – None.

City Attorney Report on Closed Session – See page 7928 for the report.

Council Meeting Calendar

4. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Councilmember Trigueiro made a comment on items 8 and 15.

Mayor Keeley opened the public comment period. The following people spoke:

Kevin Norton spoke regarding item 10.

James Ewing-Whitman spoke regarding item 5.

Tracy Weiss spoke regarding item 17.

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember O'Hara, to approve the remaining Consent Agenda with the exception of item 16.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Brunner (with the exception of items 9 and 10), Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner (items 9 and 10).

5. Minutes of the May 13, 2025 City Council Meeting (CC)

LOCATION: None

Motion carried to approve as submitted.

6. Commission for the Prevention of Violence Against Women (CC)

LOCATION: Citywide

Motion carried to approve Vice Mayor Kalantari-Johnson's nomination of Andrea Ludwick to the Commission for the Prevention of Violence Against Women.

7. Historic Preservation Commission (CC)

LOCATION: Citywide

Motion carried to approve Vice Mayor Kalantari-Johnson's nomination of Greg Larson to the Historic Preservation Commission.

Consent Agenda (continued)

8. Children's Fund Oversight Committee (CC)

LOCATION: Citywide

Motion carried to approve the at-large appointment of Pamela Velasquez to the Children's Fund Oversight Committee.

9. Cooperative Retail Management Business Real Property Improvement District Assessments for FY 2026 (EDH)

LOCATION: District 4

Motion carried to:

- Approve the FY 2025 Annual Report and FY 2026 Plan prepared by the Downtown Management Corporation;

- Adopt Resolution No. NS-30,491 a Resolution of Intention to levy a Cooperative Retail Management Business Real Property Improvement District Assessment for FY 2026 and schedule a public hearing for June 10, 2025 on the levy of the assessments for FY 2026; and

- Adopt Resolution No. NS-30,492 amending the Fiscal Year 2025 budget to increase Kiosk Maintenance (Fund 123) expenditures by $16,500, offset by revenue collected in Kiosk Maintenance (Fund 123).

10. Downtown Association: Parking and Business Improvement Area Assessments for FY 2026 (EDH)

LOCATION: District 4

Motion carried to:

- Approve the annual report and work plan prepared by the Downtown Association for FY 2026; and

- Adopt Resolution No. NS-30,493 a Resolution of Intention to levy a Downtown Association Parking and Business Improvement Assessment for FY 2026 and schedule a public hearing for June 10, 2025 on the levy of the assessments for FY 2026.

Consent Agenda (continued)

11. Award a Contract to Gallagher Benefits Services, Inc. for 2024 Compensation Study (HR)

LOCATION: Citywide

Motion carried to award a contract to Gallagher Benefit Services, Inc. in the amount of $231,900 and to authorize the City Manager to execute an agreement in a form approved by the City Attorney. The Human Resources Director is authorized to execute amendments within the approved budget.

12. Authorization to Exceed $100,000 for Legal Services (HR)

LOCATION: Citywide

Motion carried authorizing the City Manager, or their designee, to execute agreements with Burke, Williams & Sorensen LLP, in forms approved by the City Attorney, and approve payments exceeding $100,000 legal services for Fiscal Years 2025 and 2026.

13. Authorization to Exceed $100,000 for Investigation Services with Oppenheimer Investigations Group, LLP, Related to Respectful Workplace, Harassment, and Discrimination Complaints (HR)

LOCATION: Citywide

Motion carried authorizing the City Manager, or their designee, to execute agreements with Oppenheimer Investigations Group, LLP, in forms approved by the City Attorney, and approve payments exceeding $100,000 in the aggregate for third-party investigation services related to workplace harassment, discrimination, and respectful workplace complaints for Fiscal Years 2025 and 2026.

14. Proposed Amendment to the Planning Commission Bylaws Regarding Meeting Start Time (PL)

LOCATION: Citywide

Motion carried to amend Article VIII – Meetings, Section 1. Time and Location of Meetings of the Planning Commission Bylaws to add the provision that the Chair of the Planning Commission may have the option to begin the meeting no earlier than 6:00 pm upon recommendation of the Planning and Community Development Department staff.

Consent Agenda (continued)

15. Contract for Septic System Replacement Services at Lower DeLaveaga Community Park. Environmental Determination: Categorical Exemption 15301(d), Existing Facilities (PR)

LOCATION: District 1

Motion carried to:

- Adopt Resolution No. NS-30,494 to amend the FY 2025 budget to appropriate funds in the amount of $163,080 from existing Parks and Recreation Capital Improvement Program project balances to resource the repair of the Lower DeLaveaga Park septic system;

- Award a contract for services to procure and install a new septic system at Lower DeLaveaga Park to Tom's Septic Construction, a subsidiary of The Don Chapin Company, Inc. in an amount not to exceed $132,750; and

- Approve the CEQA determination contained in this agenda report, including the application of the following categorical exemption: CEQA Guidelines Section 15301 (Existing Facilities).

16. Resolution for Grant Anticipation Notes to Fund Repairs to West Cliff Drive (PW/FN)

LOCATION: Districts 3 and 6

Director of Public Works N. Nguyen spoke.

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to adopt Resolution No. NS-30,495 authorizing the issuance and sale of up to $22,000,000 in grant anticipation notes to provide financing for the West Cliff Drive emergency repairs, and authorizing execution and delivery of related a note purchase agreement and related documents and actions.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Consent Agenda (continued)

17. Measure E Oversight Committee (PW)

Location: Citywide

Motion carried authorizing the Mayor to appoint three staff-recommended members to serve on the Measure E Oversight Committee: Water Commissioner Julianne Rhodes and Transportation and Public Works Commission Vice Chair Susan Gilchrist and Commissioner Scott Harriman.

18. West Cliff Drive 60-Inch Reinforced Concrete Pipe (RCP) Headwall Repair (c402409) – Notice of Completion (PW)

LOCATION: District 6

Motion carried to accept the work of Access Limited Construction (Oceano, CA) as completed per plans and specifications and authorize the filing of the Notice of Completion for the West Cliff 60-Inch RCP Headwall Repair (c402409) and authorizing the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

19. Senate Bill 1 Road Maintenance and Rehabilitation Account (RMRA) – FY 2026 Funding (PW)

LOCATION: Citywide

Resolution No. NS-30,496 was adopted approving the FY 2026 allocation of SB 1 Road Maintenance and Rehabilitation Account funds and authorize the City Manager to submit the project list to the California Transportation Commission.

Consent Agenda (continued)

20. Second Amendment to Professional Services Agreement for City of Santa Cruz Watershed Lands Forest Management Project – Newell Creek Tract Phase 1 (WT)

LOCATION: County

Motion carried to:

- Authorize the City Manager to execute Second Amendment to Professional Services Agreement for City of Santa Cruz Watershed Lands Forest Management Project – Newell Creek Tract Phase 1 with Auten Resource Consulting in a form approved by the City Attorney; and

- Find the Agreement to be exempt under the California Environmental Quality Act (CEQA), allowing staff to file a Notice of Exemption.

End Consent Agenda

Consent Public Hearing

Mayor Keeley opened the public comment period. The following person spoke:

Garret spoke regarding item 23.

Mayor Keeley closed the public comment period.

MOTION: Councilmember Newsome moved, seconded by Councilmember Golder, to approve the Consent Public Hearing Agenda.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Brunner (item 22), Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner (Items 21, 23, 24, and 25).

21. Establishment of Downtown Density Bonus Fees and Charges (PL)

LOCATION: District 4

Resolution No. NS-30,497 was adopted creating the fees and charges for projects using the Downtown Density Bonus.

Consent Public Hearings (continued)

22. 2nd Reading and Final Adoption of Ordinance No. 2025-10 Rescinding Santa Cruz Municipal Code Section 21.07.020 Pursuant to a Settlement Agreement that Protects Tenants at the St. George Apartments (CA)

LOCATION: Citywide

Ordinance No. 2025-10 was adopted rescinding Santa Cruz Municipal Code section 21.07.020 pursuant to a settlement agreement that protects tenants at the St. George Apartments.

23. 2nd Reading and Final Adoption of Ordinance No. 2025-12 to Amend the Zoning Designation of the Northern Four Acres of 2394 Delaware Avenue From R-1-5 (Single Family Residence District) to E-A (Exclusive Agricultural District); 2nd Reading and Final Adoption of Ordinance No. 2025-13 to Amend the Zoning Designation of the Southern Approximately 6.3 Acres of [illegible] Delaware Avenue From R-1-5 (Single Family Residence District) to R-L (Multiple Residence – Low-Density District); and Resolution for Local Coastal Program (LCP) Amendments to Certify the Northern Four Acres of 2394 Delaware Avenue Into the LCP, Including Assignment of the Coastal Appeal Zone Level of Permit Authority and Assignment of the Agriculture/Grazing Land Use Designation, and to Amend the Text of the Agriculture/Grazing Land Use Designation Description within the LCP Land Use Plan (LCLUP). Amendments to the Subject Site's Zoning, Certification Into the LCP, and LCLUP Text Amendments Are Part of the LCP Implementation Plan and LCLUP and Require Approval by the California Coastal Commission Prior to Taking Effect Inside the Coastal Zone (PL)

LOCATION: District 6

Motion carried to:

- Adopt Ordinance 2025-12 amending the zoning designation of the northern four acres of the subject site;

- Adopt Ordinance 2025-13 amending the zoning designation of the southern approximately 6.3 acres of the subject site;

- Adopt Resolution No. NS-30,498 to certify the northern four acres of the subject site into the Local Coastal Program (LCP), including assignment of an Agriculture/Grazing LCP land use designation and Coastal Appeal zone permitting authority and making associated amendments to the Local Coastal Land Use Plan text; and

Consent Public Hearings (continued)

23. 2nd Reading and Final Adoption of Ordinances to Amend the Zoning Designation of the Northern Four Acres and Southern 6.3 Acres of 2394 Delaware Avenue (PL) LOCATION: District 6 (continued)

Motion (continued):

- Adopt Resolution No. NS-30,499 directing the City Manager to submit to the California Coastal Commission the ordinance rezoning the northern four acres of the subject site and the resolution to certify the northern four acres of the subject site into the Local Coastal Program (LCP), including assignment of an Agriculture/Grazing LCP land use designation and Coastal Appeal zone permitting authority and making associated amendments to the Local Coastal Land Use Plan text.

24. Approval of 2025-2030 Consolidated Plan (Con Plan), 2025 Program Year (PY) Annual Action Plan (AAP), 2025 Neighborhood Revitalization Strategy Area Plan, Community Participation Plan Amendment, and Fiscal Year 2025 Budget Adjustment (EDH)

LOCATION: Citywide

Motion carried to:

- Adopt Resolution No. NS-30,500 for the City's 2025-2026 U.S. Department of Housing and Urban Development (HUD) Annual Action Plan (AAP) and 2025-2030 Consolidated Plan (Con Plan); amend the Citizen Participation Plan for the City's Housing and Community Development Program; direct staff to submit the 2025-2026 AAP and 2025-2030 Con Plan, which includes the 2025 Neighborhood Revitalization Strategy Area (NRSA) Plan, to HUD; authorize the City Manager to sign an application for federal funding assistance for the 2025-2026 program year; and authorize the City Manager or his designee to execute program/project contracts, loan and grant agreements and related loan documents with Community Development Block Grant (CDBG) and HOME Investment Partnerships Program (HOME) sub-recipients and contractors in connection with Consolidated Plan (Con Plan) activities proposed in the 2025-2026 Annual Action Plan (AAP) and any subsequent revisions to the 2025-2026 AAP .

- Adopt Resolution No. NS-30,501 amending the Fiscal Year 2025 budget to reduce the total HOME Investment Partnerships Program (HOME) award to the Downtown Library and Affordable Housing Project approved under Annual Action Plan (AAP) Program Year (PY) 2024 and make funds available for inclusion in AAP PY 2025.

Consent Public Hearings (continued)

24. Approval of 2025-2030 Consolidated Plan, 2025 Program Year (PY) Annual Action Plan, 2025 Neighborhood Revitalization Strategy Area Plan, Community Participation Plan Amendment, and Fiscal Year 2025 Budget Adjustment (EDH)
LOCATION: Citywide (continued)

Motion (continued):

- Approve the California Environmental Quality Act (CEQA) determination contained in this Agenda Report. The Council's actions are exempt from CEQA review under (1) Class 1 Categorical Exemption (14 CCR 15301) for existing facilities, and (2) Common Sense exemption (14 CCR 15061).

25. 2nd Reading and Final Adoption of Ordinance No. 2025-11 for the Downtown Plan Expansion Amending the Santa Cruz Municipal Code and Zoning Map and Direction to Submit Local Coastal Program and Local Coastal Program Implementation Plan Amendments to the California Coastal Commission for Review for Amendments to and an Extension of the Downtown Specific Plan, Including for Areas South of Laurel Street, Roughly to the Roundabout at Pacific and Center Streets, and Making Related Changes to the General Plan, Local Coastal Program, Beach/South of Laurel Plan, and Zoning Code and Map. Applicant: City of Santa Cruz. CEQA: Downtown Plan Expansion Environmental Impact Report (PL)

LOCATION: District 4

Motion carried to:

- Adopt Ordinance No. 2025-11 deleting an obsolete zone district and making other conforming amendments, amending certain policies related to parking in the Downtown, and amending the Zoning Map which are parts of the Local Coastal Program (LCP) Implementation Program (IP); and

- Adopt Resolution No. NS-30,502 authorizing the City Manager to submit proposed amendments to the LCP Land Use Plan and to the LCP IP to the California Coastal Commission for final certification.

- Direct staff to submit the above ordinance and resolution to the California Coastal Commission for certification, together with the other resolutions and amendments previously approved for the Downtown Plan Expansion.

At this time, Council heard item 16.

General Business

26. Independent Police Auditor Report 2024 (CM)

    LOCATION: Citywide

Principal Management Analyst E. Nguyen introduced the item.

Michael Gennaco, Teresa Magula, and Samara Marion with OIR Group gave a presentation and responded to Council questions.

Chief of Police B. Escalante spoke and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Lee Brokaw
James Ewing-Whitman
Greg Benson

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Receive the annual report from the City's Independent Police Auditor, OIR Group; and

- Direct the Independent Police Auditor to include in all future annual reports (1) a full summary of the appendices, highlighting key trends over time, and (2) a separate summary outlining how the report's recommendations—particularly those related to policy, training, and oversight—will be advanced and/or monitored moving forward.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Public Hearings

27. Public Posting of Vacant Funded Positions and Recruitment and Retention Efforts in Compliance with Assembly Bill 2561 (AB 2561) (HR)

LOCATION: Citywide

Chief People Officer S. De Leon gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Trigueiro, to receive the information report on the City of Santa Cruz Vacancies and Recruitment and Retention Efforts Pursuant to Government Code Section 3502.3.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

28. Heritage Tree Mitigation/Replanting In Lieu Fee and Tree Bond Update (PR)

LOCATION: Citywide

This item was continued to the June 24, 2025 meeting and was not discussed.

Public Hearings (continued)

29. Zoning Ordinance Amendments Related to Objective Design Standards for Multifamily Housing updates, Parking, Bicycle Parking and Facilities, State Density Bonus, Reasonable Accommodations for People with Disabilities, Licensed Community Care Facilities, Low-Barrier Navigation Centers, and Historic Structures on Mission Street; a General Plan Land Use Chapter Text Amendment; and Amendments to Titles 10 and 15 of the Santa Cruz Municipal Code Related to Standards for Driveways, Daylighting, Bicycle Parking, Electric Vehicle Charging, Loading, and Bicycle Facilities to Better Meet the City's Policy Goals and Objectives and to Align with New State Laws (PL/PW)

LOCATION: Citywide

Principal Planner M. VanHua introduced the item.

Planning Technician B. Williamson and Transportation Planner C. Gallogly gave a presentation and responded to Council questions.

Director of Planning and Community Development L. Bu[illegible] and Senior Planner S. Neuse responded to Council questions.

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Councilmember Brunner moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Introduce for publication Ordinance No. 2025-14 amending Titles 10, 15 and 24 of the Municipal Code related to Parking, Bicycle Parking and Facilities, State Density Bonus, Licensed Community Care Facilities, and Low-Barrier Navigation Centers;

- Introduce for publication Ordinance No. 2025-15 amending the Local Coastal Program (LCP) Implementation Plan (IP) and Title 24 of the Municipal Code related to Objective Design Standards for Multifamily Housing, Reasonable Accommodations for People with Disabilities, Licensed Community Care Facilities, Low-Barrier Navigation Centers, and Historic Structures on Mission Street;

- Adopt Resolution No. NS-30, 503 amending the General Plan Land Use chapter text; and

Public Hearings (continued)

29. Zoning Ordinance Amendments Related to Objective Design Standards (PL/PW)
LOCATION: Citywide (continued)

MOTION (continued):

- Acknowledge the determination that the proposed amendments are covered by the Environmental Impact Report prepared for the City's General Plan and approved in June 2012 and find that the changes are also Exempt under California Environmental Quality Act (CEQA) Guidelines Section 15061(b)(3).

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Council took a break at 2:25 p.m. and returned at 3:42 p.m.

General Business

30. FY 2026 Proposed Budget (CM/FN)

LOCATION: Citywide

Director of Finance E. Cabell and Finance Manager E. Burton gave a presentation and responded to Council questions.

Principal Management Analyst L. Bass, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, and Principal Management Analyst V. Pearson responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Cathryn McCormic
Esmeralda Torres
Leeann Luna

Mayor Keeley closed the public comment period.

Adjournment – Councilmember Golder moved, seconded by Councilmember Newsome, to adjourn. By consensus City Council adjourned at 5:08 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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